

23STCV30110 23STCV30110

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Case Number: 23STCV30110 Hearing Date: July 20, 2026 Dept: 734

Plaintiff alleges that Defendant breached a personal guaranty of franchise agreement regarding opening and operating Fatburger franchises.

TENTATIVE RULING

Defendant

Mohamed Ibrahim's motion for summary judgment is GRANTED.

Plaintiff

Fatburger North America's motion for summary judgment is DENIED.

ANALYSIS

Notice of Bankruptcy Stay

On

February 10, 2026, Plaintiff Fatburger North America, Inc. filed a notice of bankruptcy stay. While the parties may request the opportunity to further brief this issue, the Court finds that Plaintiff may proceed with this case for two reasons:

First,

Plaintiff Fatburger North America is the bankruptcy debtor, yet this action is not asserted against Fatburger. As such, the automatic stay does not apply to Fatburger's action seeking to recover against Defendant Ibrahiim.

As a general rule, therefore, because "the automatic stay [*980] protects only the debtor," the "[b]ankruptcy of one defendant in a multidefendant case does not stay the case

as to the remaining defendants.” (Citation omitted.)

(Higgins v. Superior Court (2017) 15 Cal.App.5th 973, 979-80.)

Second,

Plaintiff filed a Chapter 11 bankruptcy petition. (See Notice of Bankruptcy Stay filed on February 10, 2026, Attachment, Page 2, ¶ 8.) It appears that Fatburger is a debtor in possession, who has the right to assert the cause of action for breach of guaranty. “In a Chapter 11 bankruptcy proceeding, a debtor in possession generally has all the rights of a trustee. (11 U.S.C. § 1107(a).)” (Akhlaghpour v. Orantes (2022) 86 Cal. App. 5th 232, 243-244.)

“With or without court approval, the trustee or debtor in possession may prosecute or may enter an appearance and defend any pending action or proceeding by or against the debtor, or commence and prosecute any action or proceeding in behalf of the estate before any tribunal.” (Fed. Rules Bankr., rule 6009, 11 U.S.C., *italics added.*) Chapter 11 debtors in possession have such standing with or without bankruptcy court approval because they retain possession and control of their assets as part of their bankruptcy court-supervised plans to revive their businesses and satisfy their creditors.

(California Aviation, Inc. v. Leeds (1991) 233 Cal.App.3d 724, 729 [**bold emphasis added**].)

As

such, the Court will proceed to address the merits of both motions for summary judgment, unless the parties can present a persuasive argument to stay this action.

Plaintiff’s Evidentiary Objections

Pursuant to

Code Civ. Proc. § 437c(q), the Court only rules upon the following objections asserted against evidence which the Court deems to be material to the disposition of this motion:

Declaration

of Mohamed Ibrahim

No. 13: OVERRULED. Relevant.

Discussion

Defendant

Mohamed Ibrahim's Motion For Summary Judgment/Summary Adjudication

The Court notes that

Defendant set forth two issues in the notice of motion, Pages ii:9 – 19 as follows:

Issue No. 1: As to the only cause

of action of the First Amended Complaint, there is no triable issue as to any material fact and Defendant Mohamed Ibrahim is entitled to summary Adjudication as Defendant never agreed to guaranty nor did Defendant sign guaranties as to the six additional restaurants identified in Paragraphs 28 and 29 of the First Amended Complaint.

Issue No. 2: As to the only cause

of action of the First Amended Complaint, there is no triable issue as to any material fact and Defendant Mohamed Ibrahim is entitled to summary Adjudication with respect to any of Plaintiff's claims which pre-date the Settlement agreement, whether known or unknown, as all said claims have been released and Plaintiff is not entitled to recover damages on the same.

On

the other hand, Defendant presents the issues differently:

As to the sole cause of action

of the first amended complaint Defendant is entitled to summary adjudication because there is no triable issue as to any material fact; no guaranty agreements were signed for the "six additional locations" alleged in the First Amended Complaint (¶¶ 28-29). With respect to the two executed guarantees, there is no triable issue as to any material fact since the guaranty contract was not formed due to lack of meeting of the minds.

Defendant

failed to comply with Cal Rules of Court, Rule 3.1350(b), which provides:

If made in the alternative, a motion for

summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether

separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

(Cal. Rules of Court, Rule 3.1350(b) [bold emphasis and underlining added].)

As this case demonstrates, the manner in which an issue is framed is critical. To begin with, an issue should be phrased in language appropriate for adoption by the court if the motion is granted. (Citation omitted.) If nothing else, this avoids debate about whether the language of the order properly reflects the issue actually adjudicated.

More importantly, the issue should be clear and unambiguous and its scope should be apparent. In

(United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 333 [bold emphasis added].)

Because there is only one cause of action asserted in the First Amended Complaint, the Court must mind the rule that a motion for summary adjudication must dispose of an entire cause of action [Code Civ. Proc., § 437c(f)(1)], unless certain procedures are followed prior to the bringing of the motion for summary adjudication [Code Civ. Proc., § 437c(t)] which procedures were not followed here.

[T]here can be no summary adjudication of less than an entire cause of action. (Code Civ. Proc., § 437c, subd. (f)(1) ["A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty."].) Therefore, an order granting summary adjudication "to the extent" a cause of action rests on this or that premise is invalid unless the matter thus adjudicated is properly viewed as a distinct "cause of action" for purposes of the provision thus cited. If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered.

(McCaskey v. California State Automobile Assn. (2010) 189 Cal. App. 4th 947, 975.)

In this regard,
if Defendant has not demonstrated entitlement to summary judgment as to the entire first cause of action, the Court need not address each theory presented by Defendant. That is, if one of Defendant's theories fails on summary judgment, this will preclude entry of judgment in Defendant's favor as to the entire sole cause of action.

The Court notes
that the 1AC alleges as follows:

45. Under the terms of the written Guaranties,
including those that were signed and those that were required to have
been signed, Ibrahim "unconditionally and irrevocably" guaranteed and agreed,
among other things, to FBNA the, "prompt full payment and performance of all obligations
of [Deelish] that are or may become due and owing to [FBNA]," including "but not
limited to, all obligations arising out of the Franchise Agreement or any other
agreement" between FBNA and Deelish.

. . .

48. As a direct and proximate result of
Ibrahim's breach of its obligations under the Guaranties as alleged above, FBNA
has been damaged, and will continue to be damaged, in an amount equal to at least
\$2,743,490.00, but which will conform to proof at the hearing.

(1AC, ¶¶ 45, 48 [bold emphasis added].)

As
to the two executed guaranties, Defendant is incorrect in arguing that he did not
agree to their terms because Fatburger switched the terms from a limited "Bad Acts"
guaranty against using confidential information in the Letter of Intent to a personal
guaranty of performance in the Guaranties.

In the opposing
separate statement, Plaintiff cites the following:

Fact No. 43: After
the form agreements had been prepared in response to Ibrahim's comments, Warren
Christiansen, Legal Counsel and Franchise

Development Executive

for FBNA's parent company, Fat Brands, Inc., sent two separate Franchise Agreements for restaurants located at One KM and Novena Square in Singapore, each with an attached guaranty, and a separate Co-Branding Addendum for each, by email to Ibrahim for signature on July 23, 2018.

Supporting Evidence:

Appendix, Ex. 2, Wiederhorn Decl., ¶ 15; Appendix, Ex. 6, July 23, 2018 Email from W. Christiansen.

Fact No. 44: On

August 16, 2018, Ibrahim authorized his assistant, Machiko, to affix his signature to these documents. Machiko then forwarded copies of the signed documents to FBNA.

Supporting Evidence:

Appendix, Ex. 1, Ibrahim Depo. at 63:17-64:21, 73:4-79:6, 102:18-107:19; Appendix, Ex. 2, Wiederhorn Decl., ¶ 16; Appendix, Ex. 7, August 16, 2018 Email Chain.

Because Defendant authorized his signature on the two guaranties, he is deemed to have agreed to them as written, even if he did not read them:

First, the law effectively presumes that everyone who signs a contract has read it thoroughly, whether or not that is true. A basic rule of contract law is, “ ‘in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it.’ ” (Citation omitted.) Moreover, courts must also presume parties understood the agreements they sign, and that the parties intended whatever the agreement objectively provides, whether or not they subjectively did: “ ‘Where the parties have reduced their agreement to writing, their mutual intention is to be determined, whenever possible, from the language of the writing alone.’ ... ‘[T]he parties’ expressed objective intent, not their unexpressed subjective intent, governs.’ ” (Citation omitted.) And finally, in perhaps the biggest legal fiction of all, we are required to presume that parties to a contract both know [*94] and have in mind “ ‘all applicable laws in existence when an agreement is made ... necessarily enter into the contract and form a part of it, without any stipulation to that effect, as if they were expressly referred to and incorporated.’ ” (Citation omitted.)

(Roldan v. Callahan & Blaine (2013) 219 Cal.App.4th 87, 93-94 [bold emphasis and underlining added].)

Implicit

in Defendant's theory is that he was fraudulently induced to execute (or authorized an agent to sign on his behalf) the personal guaranty in the Guaranties after agreeing to a "bad acts" only guaranty in the Letter of Intent. However, because Defendant had the opportunity to read the Guaranties before signing them, he cannot claim fraud in the execution.

[A] party claiming fraud in the execution of a contract must prove that he or she had no reasonable opportunity to learn the character or the essential terms of the document he or she was signing. (Id. at p. 423.) A party cannot establish fraud in the execution if he or she failed to read the contract despite having had a reasonable opportunity to do so. (Ibid.) Rosenthal stated that statements assuring the plaintiffs that the written agreements were unimportant, "even if falsely and fraudulently made, do not void a written contract, because it is generally unreasonable, in reliance on such assurances, to neglect to read a written agreement before signing it." (Id. at p. 424.)

Rosenthal distinguished fraud in the execution, where the promisor does not know what he or she is signing or does not intend to enter into a contract at all, rendering the contract void, from fraud in the inducement, where the promisor knows what he or she is signing but his or her consent is induced by fraud, rendering the contract voidable. (Rosenthal, *supra*, 14 Cal.4th at p. 415.)

(Chapman
v. Skype Inc. (2013) 220 Cal.App.4th 217, 232 [bold emphasis added].)

Nonetheless, Defendant also cites the Settlement Agreement the parties entered into dated October 1, 2020, pursuant to which the parties mutually released any and all claims they had against each other up through the effective date of the settlement, i.e. October 1, 2020. (Settlement Agreement, Page 1 preamble and § 6.2(a) & (b).). (1AC, ¶ 25; Exh. D.) The settlement was necessitated by Deelish's failure to pay to Fatburger North America all Royalty Fees and Advertising Fund Contributions owed under the One KM and Novena Franchise Agreements, which the Settlement Agreement recites to be \$63,119.89. (Settlement Agreement, § 4.1.)

Six (Plaintiff claims five in the Opposition) Fatburger restaurants were opened after the execution of the Settlement Agreement. (1AC, ¶ 28.) Indeed, the Settlement Agreement expressly addressed the Third Restaurant which

had not yet opened as of the date of the Settlement Agreement. (Settlement Agreement, Page 1.E (noting that the Third Restaurant “will be located” at a specific address); §§ 1.3, 3.1.) As such, by virtue of the release in the Settlement Agreement, Plaintiff has released all claims against Defendant which predate the opening of the six (five) Fatburger restaurants. In other words, Plaintiff released the claims based upon the two guaranties signed by Defendant Ibrahim. Further, as discussed below, there are no enforceable guaranties signed by Defendant Ibrahim as to those six (five) Fatburger restaurants.

Civil Code § 1624(a)(2) provides:

(a) The following contracts are invalid, unless they, or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent:

...

(2) A special promise to answer for the debt, default, or miscarriage of another, except in the cases provided for in Section 2794.

(Bold emphasis added.)

In turn, Civil Code § 2794 provides:

A promise to answer for the obligation of another, in any of the following cases, is deemed an original obligation of the promisor, and need not be in writing:

(1) Where the promise is made by one who has received property of another upon an undertaking to apply it pursuant to such promise; or by one who has received a discharge from an obligation in whole or in part, in consideration of such promise;

(2) Where the creditor parts with value, or enters into an obligation, in consideration of the obligation in respect to which the promise is made, in terms or under circumstances such as to render the party making the promise the principal debtor and the person in whose behalf it is made, his surety;

(3) Where the promise, being for an antecedent obligation of another, is made upon the consideration that the party receiving it cancels the antecedent obligation, accepting the new promise as a substitute therefor; or upon the consideration that the party receiving it releases the property of another from a levy, or his person from imprisonment under an execution on a judgment obtained upon the antecedent obligation;

(4) Where the promise is upon a consideration beneficial to the promisor, whether moving from either party to the antecedent obligation, or from another person;

(5) Where a factor undertakes, for a commission, to sell merchandise and act as surety in connection with the sale;

(6) Where the holder of an instrument for the payment of money, upon which a third person is or may become liable to him, transfers it in payment of a precedent debt of his own, or for a new consideration, and in connection with such transfer enters into a promise respecting such instrument.

(Civ. Code § 2794.)

Plaintiff does

not demonstrate that any of the conditions set forth in Civil Code § 2794 apply. Instead, Plaintiff argues that the two Guaranties signed by Defendant Ibrahim are written guaranties as to the six additional Fatburger restaurants opened after the October 1, 2020 settlement agreement.

Plaintiff argues

that, pursuant to the Guaranties, Ibrahim “unconditionally and irrevocably” guaranteed to FBNA “the prompt full payment and performance of all obligations of [Deelish] which are or may become due and owing to [FBNA], including, but not limited to, all obligations arising out of the Franchise Agreement or any other agreement between” Deelish and FBNA. [SS Fact No. 49] (emphasis added.) Plaintiff argues that the phrase “any other agreement” between FBNA and Deelish encompasses every agreement — whether an existing franchise agreement, a future franchise agreement, or any other agreement between the parties. Plaintiff argues that these Guaranties were not limited to the two initial franchise agreements. Thus, Plaintiff argues, even though Ibrahim failed to sign additional guaranties upon his opening of the additional restaurants, his existing Guaranties already bound him to those obligations.

In support of this argument, Plaintiff's
Opp Facts Nos. 46 – 55 are as follows:

Fact No. 46: Section 25.6 of FBNA's form of Franchise Agreement requires that
"all present and future [o]wners of a 10% or more (directly or indirectly), in the
aggregate, of the [e]quity or voting rights in [f]ranchisee, will execute a written
guaranty in a form prescribed by [f]ranchisor, personally, irrevocably and unconditionally
guaranteeing, jointly and severally, with all other guarantors, the full payment
and performance of

[f]ranchisee's obligations to [f]ranchisor and to [f]ranchisor's [a]ffiliates."

Supporting Evidence: Ibrahim Decl., ¶¶ 20-21, Exs. 6-7, One KM and Novena
Franchise Agreements at MI000274, MI000215, § 25.6. Fact No. 47: A Guaranty, Indemnification,
and Acknowledgement Agreement is attached as an exhibit to FBNA's form of Franchise
Agreement.

Supporting Evidence: Ibrahim Decl., ¶¶ 20-21, Exs. 6-7, One KM and Novena
Franchise Agreements at MI000283-000285, MI000224-000226.

Fact No. 48: As an owner of 10% or more of Deelish's equity, Section 25.6
of the One KM Franchise Agreement and Novena Franchise Agreement required Ibrahim
to concurrently execute the Guaranties.

Supporting Evidence: Ibrahim Decl., ¶¶ 20-21, Exs. 6-7, One KM and Novena
Franchise Agreements at MI000274, MI000215, § 25.6; Appendix, Ex. 1, Ibrahim Depo.
at 25:16-26:22.

Fact No. 49: Pursuant to the Guaranties, Ibrahim "unconditionally and irrevocably"
guaranteed to FBNA "the prompt full payment and performance of all obligations of
[Deelish] which are or may become due and owing to [FBNA], including, but not limited
to, all obligations arising out of the Franchise Agreement or any other agreement
between" Deelish and FBNA.

Supporting Evidence: Ibrahim Decl., ¶¶ 20-21, Exs. 6-7, One KM Franchise Agreement
and Novena Franchise Agreement Guaranties at MI000283, MI000224 (emphasis added).

Fact No. 50: The Guaranties expressly provide that they serve "[a]s an inducement
to [FBNA] to execute the Franchise Agreement."

Supporting Evidence: Ibrahim Decl., ¶¶ 20-21, Exs. 6-7, One KM Franchise Agreement and Novena Franchise Agreement Guaranties at MI000283, MI000224.

Fact No. 51: The parties entered into a Settlement and Mutual Release Agreement (the "Settlement Agreement"), dated October 1, 2020 which contemplated that the existing agreements, including the Multi-Site Agreement, Franchise Agreements, and Guaranties, would remain in effect.

Supporting Evidence: Ibrahim Decl., ¶ 29, Ex. 8 Settlement Agreement at FBNA_000169-171, §§ 1.1, 1.3, 2.1, 2.2, 3.1, 4.1.

Fact No. 52: Following the execution of the Settlement Agreement, Deelish proceeded to open five[1] additional FATBURGER® restaurants in Singapore.

Supporting Evidence: Appendix, Ex. 9, Responses to Requests for Admission Nos. 14, 17, 20, 23, 26, & 29; Appendix, Ex. 2, Wiederhorn Decl., ¶ 22.

Fact No. 53: These five additional restaurants include the Third Restaurant contemplated by the Settlement Agreement, as well as four restaurants for which FBNA was never provided advanced notice of their opening. Deelish engaged in a practice whereby it located a site, executed a lease for the location (without first advising FBNA), unilaterally proceeded with constructing the restaurant, and then opened the restaurant without providing advance notice to FBNA.

Supporting Evidence: Appendix, Ex. 2, Wiederhorn Decl., ¶ 22.

Fact No. 54: As a result of this practice, Franchise Agreements and Guarantees were not signed prior to the restaurants' openings.

Supporting Evidence: Appendix, Ex. 2, Wiederhorn Decl., ¶ 23.

Fact No. 55: Ibrahim, nevertheless, acknowledges that the terms of the standard form of Franchise Agreement, as modified by the Settlement Agreement, "set forth the terms and conditions for the development, opening, and operation of stores three through seven."

Supporting Evidence: Appendix, Ex. 1, Ibrahim Depo. at 179:4-16.

Plaintiff's argument is not persuasive.

The Court agrees with Defendant and cites his argument verbatim at Page 2:10 – 22 which rebuts Plaintiff's argument.

First, it renders the entire franchise agreement and guaranty execution process meaningless. If Ibrahim's two guaranties for the One KM and Novena restaurants automatically extended to every future restaurant Deelish opened under any agreement with FBNA, there would have been no need for the MURA to require a separate franchise agreement for each new restaurant, no need for each franchise agreement to separately require execution of a written guaranty, and no need for FBNA to send new franchise agreements for signature each time a new restaurant was proposed. FBNA's interpretation reads those requirements out of existence and is therefore inconsistent with the plain terms of the contract.

Second, FBNA's interpretation violates the principle that courts must read contracts as a whole and avoid interpretations that render terms surplusage. Cal. Civ. Code § 1641. The MURA and each Franchise Agreement expressly required separate execution of franchise agreements and guaranties for each new restaurant. Interpreting the existing guaranties as automatically covering future, unexecuted agreements would nullify those express requirements.

Interpretation of a written contract

is a question of law, and the Court is to apply established canons of contractual interpretation:

Interpretation

of a written contract is a question of law for the court unless that interpretation depends upon resolving a conflict in properly admitted extrinsic evidence. (Citation omitted.)

(Alki Partners, LP v. DB

Fund Services, LLC (2016) 4 Cal.App.5th 574, 599.)

The whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other.

(Civ. Code § 1641.)

"We must give significance to every word of a contract, when possible,

and avoid an interpretation that renders a word surplusage.” (Citation omitted.)

(Advanced Network, Inc. v. Peerless

Ins. Co. (2010) 190 Cal.App.4th 1054, 1063.)

Several contracts relating to the same matters, between the same parties,
and made as parts of substantially one transaction, are to be taken together.

(Civ. Code § 1642.)

Section 25.6 of FBNA's form of Franchise Agreement (Ibrahim
Decl., Exhs. 6 & 7) provides:

25.6

Guaranty

All

present and future Owners of a 10% or more (directly or indirectly), in the aggregate,
of Equity or voting rights in Franchisee, will execute a written
guaranty in a form prescribed by Franchisor, personally, irrevocably and unconditionally
guaranteeing, jointly and severally, with all other guarantors, the full payment
and performance of Franchisee's obligations to Franchisor and to Franchisor's Affiliates.

...

(Bold emphasis and underlining
added.)

The Guaranty, Indemnification and Acknowledgment

(Ibrahim Decl., Exhs. 6 &

7) signed by Ibrahim in connection with the Franchise Agreements provides:

As an inducement to Fatburger North

America, Inc. (“Franchisor”) to execute the Franchise Agreement between Franchisor and Deelish Brands
Pte LTD. (“Franchisee”) dated August 28, 2018 (the “Agreement”), the undersigned, jointly and severally,
hereby unconditionally and irrevocably guarantee to Franchisor and its successor

and assigns, the prompt full repayment and performance of all obligations of Franchisee
that are or may become due and owing to Franchisor or its affiliates, including,

but not limited to, all obligations arising out of the Franchise Agreement or any other agreement between the parties and all
extensions

or renewals of it in the same manner as if the Franchise Agreement was signed between Franchisor or

its affiliate, and the undersigned directly, as Franchisee.

(Bold emphasis
and underlining added.)

Another agreement between the parties which must be considered in interpreting the Guaranties is the International Multi-Unit Restaurant Agreement (“MURA”)(Ibrahim Decl., Ex. 2). In this regard Plaintiff itself admits the following in the Opposition at Page 3:17-26:

Contrary to Defendant’s assertion, the MURA was not silent on guaranties. Section 6 of the MURA required Deelish to execute FBNA’s current form of Franchise Agreement for each restaurant it opened. “Franchise Agreement” is expressly defined in the MURA as “the form of agreement prescribed by Franchisor and used to grant [franchisee] the right to own and operate a single Restaurant in the Development Area, including all exhibits, riders, guarantees or other related instruments, all as amended from time to time.” [SS Fact No. 37] (emphasis added). Therefore, the MURA expressly contemplated and required the execution of guarantees as a condition of opening each restaurant. [SS Fact No. 38]. By signing the MURA, Ibrahim agreed — in a fully integrated, binding contract — that a guaranty was a required component of opening every restaurant under the franchise relationship, not just the first two.

(Bold emphasis added.)

Read together,
the MURA, Franchise Agreements and Guaranties contemplate that each additional franchise requires a new franchise agreement with accompanying execution of a written Guaranty, and each Guaranty only addresses a specifically-dated Franchise Agreement. In this regard, the Court focuses in on the language of the guaranties which Ibrahim executed. The reference in the Guaranty to “all obligations arising out of the Franchise Agreement or any other agreements between the parties and all extensions or renewals of it” must be construed to refer only to those “other agreement[s]” related to the August 28, 2018 Franchise Agreement. To construe the reference to “any other agreement between the partes” to mean any and all future guaranties relating to future franchise agreements (which must be signed each time a new franchise location is opened) would render superfluous Section 25.6 of FBNA’s form of Franchise Agreement which requires the execution of a written guaranty by 10% owners in connection with a Franchise Agreement. Why state this requirement in each Franchise Agreement if it has already been imposed as an obligation in perpetuity by virtue of the August 28, 2018 Guaranty?

The Court finds that the absence of signed Guaranties as to the third and subsequent Fatburger locations renders any such claimed Guaranties unenforceable against Defendant Ibrahim based on the statute of frauds set forth in Civil Code § 1624(a)(2).

Plaintiff also argues that franchise agreements and the required written guaranty for the additional five restaurants are implied by the parties' conduct. However, to adopt this argument would be an end-run around the statute of frauds applicable to guaranties set forth in Civil Code § 1624(a)(2). This argument is not persuasive. Any actionable breach of the obligation to provide written Franchise Agreements and the concomitant written guaranties for the additional Fatburger locations lies against Deelish^[2] based upon the obligations set forth in the MURA.

For the foregoing reasons, the Court finds that no triable issue of material fact exists as to whether Defendant is entitled to judgment as to the sole cause of action for breach of guaranty. Defendant's motion for summary judgment is GRANTED.

Plaintiff Fatburger
North America's Motion For Summary Judgment

For the reasons discussed above re: Defendant's motion for summary judgment, which is hereby incorporated by reference, Plaintiff is not entitled to judgment as to any claims against Defendant Ibrahim. As such, the Court will not discuss the merits of Plaintiff's motion, which is based upon the enforceability of Guaranties against Ibrahim which are not in writing and signed by the party to be charged, i.e., Ibrahim.

As such, Plaintiff's motion for summary judgment is DENIED.

[1] Note:
The 1AC alleged passim there were six such restaurants.

[2] Per
Ibrahim's Declaration, Deelish filed for Chapter 15 bankruptcy on May 9, 2024.
(Ibrahim Decl., ¶ 38.)